

**(2017) 9 Supreme Court Cases 586 : (2017) 4 Supreme Court
Cases (Civ) 678 : 2017 SCC OnLine SC 1050**

In the Supreme Court of India

(BEFORE R.K. AGRAWAL AND A.M. SAPRE, JJ.)

ADIVEPPA AND OTHERS . . Appellants;

Versus

BHIMAPPA AND ANOTHER . . Respondents.

Civil Appeal No. 11220 of 2017⁺, decided on September 6, 2017

**Family and Personal Laws — Hindu Law — Family Property, Succession
and Inheritance — Joint Family Property/HUF Property vis-à-vis Self-
acquired Property/Individual Income — Presumption/Burden of proof**

— **Presumption of jointness of properties — Held, there lies a legal
presumption that every Hindu family is joint in food, worship and estate and
in the absence of any proof of division, such legal presumption continues to
operate in the family — The burden, therefore, lies upon the member who
after admitting the existence of jointness in the family properties asserts
his claim that some properties out of entire lot of ancestral properties are
his self-acquired property**

— **Plaintiff filed a suit, inter alia, seeking a declaration that some of the
suit properties were his self-acquired properties — Held, it was obligatory
upon the plaintiffs to have proved that despite existence of jointness in the
family, properties described were not part of ancestral properties but were
self-acquired properties — In the present case, held, the plaintiffs failed to
prove their main case set up in the plaint and thereby failed to discharge the
burden**

(Paras 19, 21 and 25)

Adivappa v. Bhimappa, 2011 SCC OnLine Kar 4414, *affirmed*

Appeal dismissed

VN-D/59051/CV

Advocates who appeared in this case :

Ms Kiran Suri, Senior Advocate [S.J. Amith and Dr (Ms) Vipin Gupta,
Advocates] for the Appellants;

Anand Sanjay M. Nuli, Dharm Singh (for M/s Nuli & Nuli), Radha
Shyam Jena, Haris Beeran, Mushtaq Salim, Usman Ghani Khan and Dev
Prakash, Advocates, for the Respondents.

Chronological list of cases cited

on page(s)

1. 2011 SCC OnLine Kar 4414, *Adivappa v. Bhimappa*

586g, 588b

The Judgment of the Court was delivered by

A.M. SAPRE, J.— Leave granted. This appeal is filed by the plaintiffs against the final judgment and order dated 22-8-2011 passed by the High Court of Karnataka, Circuit Bench at Dharwad, in *Adivappa v. Bhimappa*¹ whereby the High Court dismissed the appeal and affirmed the judgment and



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decree passed by the Court of Principal Civil Judge (Senior Division), Bagalkot in OS No. 85 of 2001.

2. In order to appreciate the short controversy involved in this appeal, it is necessary to state the relevant facts. The appellants are the plaintiffs whereas the respondents are the defendants in a civil suit out of which this appeal arises. The dispute is between the members of one family i.e. uncle, aunt and nephews. It pertains to ownership and partition of agricultural lands.

3. In order to understand the dispute between the parties, family tree of the parties needs to be mentioned hereinbelow:

4. As would be clear from the family tree, Adivappa was the head of the family. He was married to Yamanavva. From the wedlock, two sons and one daughter were born, namely, Hanamappa, Bhimappa and Gundavva. Hanamappa had two sons, namely, Adivappa and Yamanappa.

5. Adivappa the head of family owned several acres of agricultural land. He died intestate. The dispute started between the two sons of Hanamappa and their uncle Bhimappa and aunt Gundavva after the death of Adivappa and Hanamappa. The disputes were regarding ownership and extent of the shares held by each of them in the agricultural lands.

6. Adivappa and Yamanappa (appellants herein) filed a suit (OS No. 85 of 2001) against Bhimappa and Gundavva (respondents herein) and sought declaration and partition in relation to the suit properties described in Schedules B, C, and D.



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7. The declaration was sought in relation to the suit properties in Schedules B and C that these properties be declared as plaintiffs' self-acquired properties.

8. So far as the properties specified in Schedule D were concerned, it was alleged that these properties were ancestral and hence the plaintiffs have 4/9th share in them as members of the family. It was alleged that since so far partition has not taken place by metes and bound amongst the family members, the suit is to seek for partition.

9. The respondents (defendants) denied the plaintiffs' claim and averred inter alia that the entire suit properties comprising in Schedules B, C and D were ancestral properties. It was alleged that during the lifetime of Hanamappa, oral partition had taken place amongst the family members on 28-10-1993 in relation to the entire suit properties (Schedules B, C and D), pursuant to which all family members were placed in possession of their respective shares. It was alleged that the partition was acted upon by all the family members including the plaintiffs' father (Hanamappa) without any objection from any member. It is on these averments, the respondents contended that the plaintiffs' claim was misconceived.

10. The trial court framed the issues and parties adduced their evidence. By the judgment/decreed dated 15-7-2006, the trial court dismissed the suit. It was held that the plaintiffs failed to prove the suit properties specified in Schedules B and C to be their self-acquired properties. It was also held that so far as the properties specified in Schedule D are concerned, though they were ancestral but were partitioned long back pursuant to which, the plaintiffs through their father Hanamappa got their respective shares including other members.

11. The plaintiffs felt aggrieved and filed first appeal before the High Court. By impugned judgment¹, the High Court dismissed the appeal and affirmed the judgment/decreed of the trial court giving rise to filing of this appeal by way of special leave before this Court by the plaintiffs.

12. Heard Ms Kiran Suri, learned Senior Counsel, for the appellants and Mr Anand Sanjay M. Nuli and Mr R.S. Jena, learned counsel for the respondents.

13. Having heard the learned counsel for the parties and on perusal of the record of the case including the written submissions filed by the learned counsel for the appellants, we find no merit in this appeal.

14. Here is a case where two courts below, on appreciating the entire evidence, have come to a conclusion that the plaintiffs failed to prove their case in relation to both the suit properties. The concurrent findings of facts recorded by the two courts, which do not involve any

question of law, much less substantial question of law, are binding on this Court.



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15. It is more so when these findings are neither against the pleadings nor against the evidence and nor contrary to any provision of law. They are also not perverse to the extent that no such findings could ever be recorded by any judicial person. In other words, unless the findings of facts, though concurrent, are found to be extremely perverse so as to affect the judicial conscience of a Judge, they would be binding on the appellate court.

16. It is a settled principle of law that the initial burden is always on the plaintiff to prove his case by proper pleading and adequate evidence (oral and documentary) in support thereof. The plaintiffs in this case could not prove with any documentary evidence that the suit properties described in Schedules B and C were their self-acquired properties and that the partition did not take place in respect of Schedule D properties and it continued to remain ancestral in the hands of family members. On the other hand, the defendants were able to prove that the partition took place and was acted upon.

17. In order to prove that the suit properties described in Schedules B and C were their self-acquired properties, the plaintiffs could have adduced the best evidence in the form of a sale deed showing their names as purchasers of the said properties and also could have adduced evidence of payment of sale consideration made by them to the vendee. It was, however, not done.

18. Not only that, the plaintiffs also failed to adduce any other kind of documentary evidence to prove their self-acquisition of the Schedules B and C properties nor were they able to prove the source of its acquisition.

19. It is a settled principle of Hindu law that there lies a legal presumption that every Hindu family is joint in food, worship and estate and in the absence of any proof of division, such legal presumption continues to operate in the family. The burden, therefore, lies upon the member who after admitting the existence of jointness in the family properties asserts his claim that some properties out of entire lot of ancestral properties are his self-acquired property. (See Mulla, *Hindu Law*, 22nd Edn. Article 23 "Presumption as to coparcenary and self-acquired property", pp. 346 and 347.)

20. In our considered opinion, the legal presumption of the suit

properties comprising in Schedules B and C to be also the part and parcel of the ancestral one (Schedule D) could easily be drawn for want of any evidence of such properties being self-acquired properties of the plaintiffs. It was also for the reason that the plaintiffs themselves had based their case by admitting the existence of joint family nucleolus in respect of Schedule D properties and had sought partition by demanding 4/9th share.

21. In our considered opinion, it was, therefore, obligatory upon the plaintiffs to have proved that despite existence of jointness in the family, properties described in Schedules B and C were not part of ancestral properties but were their self-acquired properties. As held above, the plaintiffs failed to prove this material fact for want of any evidence.

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22. We have, therefore, no hesitation in upholding the concurrent findings of the two courts, which in our opinion, are based on proper appreciation of oral evidence.

23*. The learned counsel for the appellants took us through the evidence. We are afraid we cannot appreciate the evidence at this state in the light of what we have held above. It is not permissible.

24. It was also her submission that the trial court has recorded some findings against the defendants in relation to their rights in the suit properties and the same having been upheld by the High Court, the appellants are entitled to get its benefit in the context of these findings.

25. We have considered this submission but find no merit in the light of what we have held above. At the cost of repetition, we may observe that if the plaintiffs failed to prove their main case set up in the plaint and thereby failed to discharge the burden, we cannot accept their any alternative submission which also has no substance.

26. In the result, we find no merit in the appeal. It fails and is accordingly dismissed.

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[†] Arising out of SLP (C) No. 5664 of 2012. Arising from the Judgment and Final Order in *Adivappa v. Bhimappa*, 2011 SCC OnLine Kar 4414 (Karnataka High Court, Dharwad Circuit Bench, Regular First Appeal No. 1793 of 2006, dt. 22-8-2011)

¹ *Adivappa v. Bhimappa*, 2011 SCC OnLine Kar 4414

* **Ed.:** Para 23 corrected vide Official Corrigendum No. F.3/Ed.B.J./103/2017 dated 31-1-2018.

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